

REPUBLIC OF KENYA

IN THE CHIEF MAGISTRATE'S COURT AT KISUMU

CIVIL SUIT NO. E312 OF 2025

WANJIRU MUTHONI KARANJA PLAINTIFF

VERSUS

OTIENO & SONS HARDWARE LIMITED DEFENDANT

WITNESS STATEMENT OF DAVID OTIENO OCHIENG

I, DAVID OTIENO OCHIENG, of P.O. Box 118-40100, Kisumu, an adult male of sound mind, do hereby state as follows:

1. I am a director of the Defendant, Otieno & Sons Hardware Limited, and I am duly authorised to make this statement on its behalf. The matters stated here are within my own knowledge unless otherwise stated.
2. The Defendant has traded as a hardware retailer from Shop No. 4, Karanja Plaza, since 1st March 2024 under a written lease with the Plaintiff dated 3rd February 2024.
3. The Defendant paid rent punctually for the first fourteen months of the lease. Between March 2024 and April 2025 the Defendant paid a total of KSh 1,713,600 in rent, which the Plaintiff acknowledged by receipts, copies of which are attached and marked "DOO-1".
4. On or about 18th April 2025 the roof above the rear third of the shop began to leak heavily during the long rains. Water damaged stock worth approximately KSh 640,000, including cement, electrical fittings and paint. Photographs of the damage are attached and marked "DOO-2".
5. I reported the leak to the Plaintiff by telephone on 19th April 2025 and by letter dated 22nd April 2025, attached and marked "DOO-3", and asked her to repair the roof under clause 6.2 of the lease. The Plaintiff did not carry out any repairs. The leak continued through May and June 2025.
6. Because the rear third of the shop could not be used, I agreed with Mr. Samuel Odhiambo, who trades as Lakeside Paints, that he could store paint on pallets in that area from about 25th April 2025 in exchange for helping to move our stock to safety. He paid no rent to the Defendant and had no key to the shop. He ceased using the area on 30th August 2025.
7. From May 2025 the Defendant withheld rent because the Plaintiff had failed to repair the roof. I wrote to the Plaintiff on 6th May 2025, attached and marked "DOO-4", stating that rent would be paid into an escrow account held by the Defendant's advocates until the roof was repaired. The sum of KSh 513,600 has been held in that account since 5th August 2025.
8. The Defendant did not receive the Plaintiff's advocates' letter dated 12th August 2025 until 20th August 2025, when it was delivered to the shop by hand. No copy was sent to the email address stated in the lease.
9. On 29th August 2025 the Plaintiff's agents changed the locks on the shop while it was closed for the night and the Defendant's staff could not enter on the morning of 30th August 2025. The Defendant lost sales of approximately KSh 85,000 per trading day until it regained access on 4th September 2025 by order of this Court.
10. The Defendant is ready and willing to pay the rent held in escrow upon the Plaintiff carrying

out the roof repairs, and seeks damages for the stock destroyed and the sales lost.

I make this statement believing it to be true and knowing that it may be used in evidence in these proceedings.

DATED at Kisumu this 15th day of September 2025.

DAVID OTIENO OCHIENG

Drawn and filed by: ACHIENG & PARTNERS ADVOCATES Mega Plaza, 2nd Floor, Kisumu
Advocates for the Defendant